

Court No. - 40

Case :- WRIT - C No. - 31472 of 2022

Petitioner :- Smt. Gayatri Gunjan And 4 Others

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rahul Chaudhary, Ankur Jaiswal

Counsel for Respondent :- C.S.C., Om Prakash Mishra

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

Place this petition as fresh on 14.12.2022.

In the meantime, Sri Surendra Kumar Dubey learned counsel who is appearing for the Electricity Department may take instructions in the matter.

Order Date :- 25.11.2022

PK

(Ajit Singh, J.) (Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 31472 of 2022

Petitioner :- Smt. Gayatri Gunjan And 4 Others

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rahul Chaudhary, Ankur Jaiswal

Counsel for Respondent :- C.S.C., Om Prakash Mishra, Sunil Kumar Dubey

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Case called out. Learned counsel for the respondent nos.2 and 3 is not present.

The respondents have not complied with the order dated 25.11.2022.

In view of the aforesaid, we direct the respondent no.3 to file a counter affidavit by means of his personal affidavit within a week and shall also remain personally present before this Court to show cause as to why the order dated 25.11.2022 has not been complied with.

Put up as a fresh case on **15.02.2023**.

Order Date :- 1.2.2023

SK

Court No. - 3

Case :- WRIT - C No. - 31472 of 2022

Petitioner :- Smt. Gayatri Gunjan And 4 Others

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rahul Chaudhary, Ankur Jaiswal

Counsel for Respondent :- C.S.C., Om Prakash Mishra, Sunil Kumar Dubey

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

Heard learned counsel for the petitioners, learned Standing Counsel for the State respondent and learned counsel for the respondent nos. 2 and 3.

This writ petition has been filed praying for the following relief:-

"(I) Issue a writ, order or direction in the nature of certiorari quashing the impugned order dated 04.08.2022 passed by the respondent No.3.

(II) Issue a writ, order or direction in the nature of mandamus commanding the respondent authorities to restore the electric connection of the petitioners without any further delay."

The respondent no.3 has filed a counter affidavit dated 14.02.2023 and in paragraphs 7, 9, 12 and 13 the respondent no.3 has stated as under:-

"7. That reply of the contents of the paragraph no.1 of the writ petition is that the petitioner has taken domestic connection, whereby, he was red handed caught hold to use electricity in commercial use, therefore, the connection was temporary disconnected and made assessment in accordance with law.

9. That the contents of the paragraph no. 3 of the writ petition are false and wholly misconceived, in reply thereto is that petitioner using the electricity connection other than the use allotted to him. Hence, he was found to use the electricity in commercial purpose. Therefore, the department has registered the First Information Report on 11.07.2018 in concerned Police Station against the petitioner and later on after giving notice of opportunity of hearing and on the basis of the evidence i.e. inspection report, made assessment in tune of Rs. 10,82,037/- and issued recovery accordingly.

12. That the contents of the paragraph no. 10 of the writ petition is false, vehemently denied, in reply thereto is that the petitioner was found to use the electricity for the purpose other than for which the uses of electricity was authorized and his act fully covered under the definition of section 135(1)(e). Accordingly, the First Information Report was registered and made assessment in accordance with law.

13. That the contents of the paragraph no. 11 of the writ petition are wholly misconceived, vehemently denied. In reply thereto is that on 11.07.2018 information about theft was given to the concerned Police Station vide letter no. 2564/15. Photocopy of the First Information Report along with the inspection report, assessment order etc. are being filed herewith and marked as **Annexure no.2** to this affidavit."

We find that against the post-temporary disconnection intimation dated 4.8.2022 creating demand of Rs. 10,82,745/- , the petitioners have a remedy to file their objections under paragraph 6.8 of the Uttar Pradesh Electricity Supply Code, 2005.

In view of the aforesaid and without expressing any opinion on the merits of the case of the petitioners, this writ petition is **disposed of** giving liberty to the petitioners to raise all their objections before the respondent no.3-Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Electricity Distribution Division, Govardhan, Mathura, within four weeks from today along with the certified copy of this order. In the event, such an objection is filed within the stipulated period, then the respondent no.3 shall decide the objection in accordance with law after affording reasonable opportunity of hearing to the petitioner, within next six weeks provided there is no other legal impediment.

For the period of ten weeks or till the decision is taken, whichever is earlier, no coercive action shall be taken against the petitioner pursuant to the impugned order dated 04.8.2022.

Order Date :- 15.2.2023

Kirti